

Nepal Agricultural Research Council Act, 1992

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Amending Acts

1. Nepal Agricultural Research Council (First Amendment) Act, 2053 (1997) 2053.1.13
2. This Act is effective from 2065 Jeth 15. The words "Prasasti" and "Rajya" have been omitted. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009) 2066.1.7
3. Some Nepal Acts Amendment Act to Make Conformable to the Constitution of Nepal, 2075 (2018) 2075.1.19

Act Number 3 of the year 2048 (1992)

An Act Made to Establish and Manage the Nepal Agricultural Research Council

Preamble: Whereas, it is expedient to establish and manage the Nepal Agricultural Research Council to enhance the economic level of the general public by studying and researching problems in the agricultural sector and discovering solutions to those problems,

His Majesty King Birendra Bir Bikram Shah Dev has, by virtue of Article 129 of the Constitution of the Kingdom of Nepal, 2047 (1990), with the advice and consent of the Council of Ministers, enacted this Act. 1.

Short Title and Commencement: (1) This Act may be cited as the "Nepal Agricultural Research Council Act, 2048 (1992)".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Council" means the Nepal Agricultural Research Council established pursuant to Section 3.

(b) "Committee" means the Executive Committee constituted pursuant to Section 7.

(c) "Chairperson" means the Chairperson of the Committee.

(d) "Member" means a member of the Committee and said term also denotes the Chairperson and Member-Secretary of the Committee.

(e) "Executive Director" means the Executive Director appointed or designated pursuant to Section 13. Added by the First Amendment.(e1) "National Agricultural Policy" means the policy related to agriculture brought into publication by the Government of Nepal to implement the long-term agricultural plan prepared by the National Planning Commission and the agricultural plan included in the five-year plan.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the regulations made under this Act.

3. Establishment of the Council: (1) A Nepal Agricultural Research Council is hereby established for the purpose of identifying problems in the agricultural sector and finding solutions thereto, conducting and causing to be conducted high-level studies and research related to agriculture.

(2) The office of the Council shall be located in the Kathmandu Valley. 4. Council to be a Corporate Body: (1) The Council shall be an autonomous and corporate body with perpetual succession.

(2) The Council shall have a separate seal for all its acts and business.

(3) The Council may, like a person, acquire, possess, sell, or otherwise manage movable and immovable property.

(4) The Council may, like a person, sue and be sued in its own name.

5. Objectives of the Council: The objectives of the Council shall be as follows:-

(a) To conduct and cause to be conducted high-level studies and research related to agriculture. Amended by the First Amendment. (b) To conduct exploratory studies of necessary technologies, knowledge, and skills, discovering solutions to problems in the agricultural sector to increase agricultural production or quality.

(c) To provide necessary assistance to the Government of Nepal for the formulation of national agricultural policy. Amended by the First Amendment. 6. Constitution of the Council: (1) The Council shall be constituted as follows:-

(a) Minister or Minister of State for Agriculture - Chairperson

(b) Member (looking after agriculture sector), National Planning Commission - Member

Amended by the Some Nepal Acts Amendment Act to Make Conformable to the Constitution of Nepal, 2075 (2018). (c) Secretary, Ministry of Agriculture and Livestock Development - Member

(d) Secretary, Ministry of Finance - Member

Amended by the Some Nepal Acts Amendment Act to Make Conformable to the Constitution of Nepal, 2075 (2018). (e) Secretary, Ministry of Forests and Environment - Member

Amended by the Some Nepal Acts Amendment Act to Make Conformable to the Constitution of Nepal, 2075 (2018). (f) Secretary, Ministry of Education, Science and Technology - Member

(g) Secretary, Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009). Academy of Science and Technology - Member

(h) Dean, Institute of Agriculture and Animal Science - Member

(i) One person nominated by the Government of Nepal from among experienced agricultural scientists working in the Council - Member

(j) Two persons nominated by the Government of Nepal from among scientists working in relevant institutions who have contributed to the field of agricultural research - Member

(k) Two persons nominated by the Government of Nepal from among distinguished commercial farmers or scientists retired from the service of the Council - Member

(l) One person nominated by the Government of Nepal from among entrepreneurs engaged in the agricultural

sector - Member

(m) One person nominated by the Government of Nepal from among individuals involved in non-governmental organizations in the field of agricultural research - Member

(n) Executive Director - Member-Secretary

(2) The term of office of the members nominated pursuant to sub-section (1) shall be two years, and they may be renominated.

(3) The Government of Nepal may, if it deems necessary, by publishing a notice in the Nepal Gazette, make necessary additions, reductions, or changes among the members of the Council. Added by the First Amendment.6A.

Meeting of the Council: (1) A meeting of the Council shall be held at least twice a year. (2) The meeting of the Council shall be held on the date, time, and place specified by the Chairperson of the Council. (3) The presence of at least fifty percent of the total number of members of the Council shall be deemed to constitute a quorum for a meeting of the Council. (4) The meeting of the Council shall be chaired by the Chairperson of the Council, and in the absence of the Chairperson of the Council, a person chosen by the members of the Council from among themselves shall chair the meeting. (5) The decisions of the Council shall be certified by the Member-Secretary. (6) Other matters relating to the meeting of the Council shall be as determined by the Council itself. Added by the First Amendment.6B. Functions, Duties, and Powers of the Council: The functions, duties, and powers of the Council shall be as follows:- (a) To formulate necessary policies for conducting studies and research related to agriculture, remaining subject to the national agricultural policy. (b) To set priorities for studies and research related to agriculture. (c) To approve annual programs and budgets necessary for conducting studies and research related to agriculture. (d) To approve the organizational structure and staff positions of the office of the Council. (e) To review agricultural research activities carried out in Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009).. (f) To provide suggestions to the Government of Nepal for identifying agricultural problems and formulating national agricultural policy. (g) To give necessary directions to the Committee. Amended by the First Amendment.7.

Constitution of the Executive Committee: (1) For the operation of the functions of the Council, there shall be an Executive Committee consisting of the following members:- (a) Executive Director - Chairperson (b) Joint Secretary, Ministry of Finance - Member Amended by the Some Nepal Acts Amendment Act to Make Conformable to the Constitution of Nepal, 2075 (2018).(c) Joint Secretary, Ministry of Agriculture and Livestock Development - Member (d) Joint Secretary (looking after agriculture sector), National Planning Commission - Member (e) Director General, Department of Agriculture - Member (f) Director General, Department of Livestock Services - Member (g) One person nominated by the Government of Nepal from among the chiefs of regional-level offices of the Council - Member (h) One person nominated by the Executive Director from among the program directors of the Council - Member-Secretary (2) The term of office of the members nominated pursuant to sub-section (1) shall be two years, and they may be renominated. (3) The Government of Nepal may, if it deems necessary, by publishing a notice in the Nepal Gazette, make necessary additions, reductions, or changes among the members of the Committee. 8. Meeting of the Committee: (1) A meeting of the Committee shall be held on the date, time, and place specified by the Chairperson. (2) The presence of at least fifty percent of the total number of members of the Committee shall be deemed to constitute a quorum for a meeting of the Committee. (3) The meeting of the Committee shall be chaired by the Chairperson, and in the absence of the Chairperson, a person chosen by

the members from among themselves shall chair the meeting. (4) The decisions of the Committee shall be certified by the Member-Secretary. (5) Other matters relating to the meeting of the Committee shall be as determined by the Committee itself. 9.

Functions, Duties, and Powers of the Committee: Remaining subject to the policy directives given by the Council, the functions, duties, and powers of the Committee shall be as follows:- (a) To conduct and cause to be conducted studies and research related to agriculture, remaining subject to the policy directives given by the Council. (b) To prepare programs and budgets necessary for conducting studies and research related to agriculture, remaining subject to the policy directives given by the Council, and submit them to the Council for approval. (c) To provide necessary consultancy services and research support related to agricultural research. (d) To keep updated statistics and reports of studies and research activities related to agriculture. (e) To comply with and ensure compliance with the directives given by the Council. (f) To perform and cause to be performed other necessary functions related to agricultural research. 10. Power to Constitute Sub-Committees: (1) Added by the First Amendment. The Council or the Committee may, as required for the conduct of its functions, constitute a sub-committee. (2) The functions, duties, powers, and procedures of a sub-committee shall be as prescribed. 10A. Delegation of Powers: Added by the First Amendment. (1) The Council may delegate some of the powers vested in it to the Chairperson of the Council, a member of the Council, the Committee, or a sub-committee. (2) The Committee may delegate some of the powers vested in it to the Chairperson, a member, a sub-committee, or any officer-level employee of the Committee. 11. Fund of the Council: (1) The Council shall have a separate fund. (2) The following amounts shall be deposited in the fund of the Council:- (a) Grant amounts received from the Government of Nepal, (b) Grant amounts received from any foreign government or international organization, (c) Amounts received from conducting or causing to be conducted research work or consultancy services, (d) Amounts received from other sources. (3) Prior approval of the Government of Nepal shall be required for receiving grants from foreign governments or international organizations. (4) All amounts received by the Council shall be deposited by opening an account in a commercial bank within Nepal Omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066 (2009).. (5) All expenditures to be borne by the Council shall be borne from the fund pursuant to sub-section (1). 12. Accounts and Audit: Amended by the First Amendment. (1) The accounts of income and expenditure of the Council shall be maintained according to a commercial accounting system. (2) The accounts of the Council shall be audited by the Auditor General. 13.

Executive Director: Amended by the First Amendment. (1) There shall be an Executive Director as the administrative chief of the Council. (2) There shall be a Recommendation Committee as follows to submit a recommendation to the Government of Nepal for the appointment of the Executive Director:- (a) Secretary, Ministry of Agriculture. (b) Two eminent agricultural scientists, other than members of the Council, designated by the Government of Nepal. (3) The Recommendation Committee pursuant to sub-section (2) shall recommend three individuals from among competent and senior scientists working under the Agricultural Research Council for appointment to the post of Executive Director, and the Government of Nepal shall appoint one of those individuals to the post of Executive Director. Provided that, if a suitable person for appointment to the said post is not available among the scientists working in the Council, that post shall be filled through open competition. (4) The qualification of individuals to be recommended for the post of Executive Director shall be as follows:- (a) Having passed at least a Master's level in a subject related to agriculture and having at least ten years of experience in study and research work related to agriculture. (b) Having published works in subjects related to agricultural research. (5) The term of office of the Executive Director shall be four years, and he/she may be reappointed for another four years. Provided that, if his/her work is not satisfactory, the Government of Nepal may, on the recommendation of the Council, remove

him/her from the post even before the expiry of his/her term. (6) Provisions relating to the remuneration, terms of service, and facilities of the Executive Director shall be as prescribed. 14. Employees of the Council: (1) For the operation of the functions of the Council, the Committee shall appoint necessary employees as prescribed. (2) Provisions relating to the remuneration, terms of service, and facilities of employees appointed pursuant to sub-section (1) shall be as prescribed. 15. Report to be Submitted to the Government of Nepal: The Council shall submit an annual report of its work to the Government of Nepal within six months of the expiry of each fiscal year. 16. Government of Nepal may Give Directions: The Government of Nepal may give necessary directions to the Council, and it shall be the duty of the Council to comply with such directions. 17.